Fort Bend County District Court

Cause No. 2024-CV-0033

Dylan Thomas, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	10-26-24
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For its affirmative defenses, Defendant sttaes as follows. First, Plaintiff's alleged injuries and damages were not proximately caused by any negligence on the part of Defendant. The collision was of such low speed that the forces involved could not have produced the injuries claimed, and any conditions Plaintiff now asserts were pre-existing or unrelated to the incident.

Second, Plaintiff failed to mitigate damages by not following reasonable medical advice, delaying treatment, or incurring expenses that were unnecessary or unreasonable in amount. Any recovery must be reduced accordingly.

Third, to the extent Plaintiff's own careless operation of his or her vehicle contributed to the collision, Defendant invokes Texas proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Any damages awarded must be reduced by the percentage of responsibility attributed to Plaintiff, and recovery is barred if Plaintiff's share exceeds fifty percent.

Defendant reserves the right to amend this answer as discovery proceeds.